

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 26-02

NANCY PRIOR,

Complainant,

v.

**AMOOV GROUP, FREIGHTLEAD LLC, and AIR 7 SEAS TRANSPORT
LOGISTICS, INC.,**

Respondents.

**COMPLAINANT’S OPPOSITION TO RESPONDENT FREIGHTLEAD’S MOTION
TO DISMISS**

Complainant Nancy Prior respectfully submits this Opposition to Respondent FreightLead LLC’s Motion to Dismiss. FreightLead’s motion should be denied because the factual record demonstrates that FreightLead maintained a willful, non-transparent hold on the cargo for a period of 40 days, following several months of failure to notify the Complainant of the cargo’s arrival, in violation of 46 U.S.C. § 41102(c).

I. STATUTORY JURISDICTION AND THE INCENTIVE PRINCIPLE

Respondent FreightLead is a licensed Ocean Transportation Intermediary (OTI) mandated by 46 U.S.C. § 41102(c) to observe just and reasonable practices. Under the Commission’s Incentive Principle, shipping practices must facilitate, not hinder, the movement of cargo. FreightLead’s sustained refusal to disclose the warehouse location hindered the movement of

cargo to facilitate a third-party financial dispute, a practice the Commission has found to be an unreasonable practice.

II. EVIDENCE OF WILLFUL DELAY AND CONSTRUCTIVE POSSESSION

Respondent FreightLead's characterization of itself as a passive delivery agent is contradicted by the operational facts and the specific conduct of its agents, which establish a prolonged period of unauthorized withholding:

1. **Non-Disclosure of Essential Shipping Information (Nov 13):** On November 13, 2025, Complainant's representative visited FreightLead's Parsippany, NJ facility to tender a formal request for the Bill of Lading (BOL) and the physical location of the cargo. A FreightLead representative, identified as Aras Kaya, acknowledged access to the shipment's internal records but explicitly refused to release the BOL or disclose the warehouse location. (See **Exhibit 1**, Declaration of David Thomas Driscoll).
2. **Subordination of Access to a Third-Party Intermediary:** In lieu of fulfilling its regulatory obligations, Mr. Kaya provided Complainant's representative with a handwritten note directing all release inquiries to a specific individual, "Nelson," in the "Dispatch" department of Respondent Air 7 Seas. (See **Exhibit 1-A**). By subordinating Complainant's access to her property to the discretion of a third-party intermediary, FreightLead acted as the operational gatekeeper and "but-for" cause of the continued withholding.
3. **Prolonged Period of Negligence and Active Withholding:** Respondent FreightLead's failure to observe just and reasonable practices extends from the cargo's arrival in Miami in August 2025 through the date of disclosure in December. Despite the cargo being under their purview for months without notice to the

Complainant, FreightLead transitioned from passive negligence (August through November) to the active withholding of information for a period of 40 consecutive days (November 13 to December 23). This continuous period of non-cooperation was terminated only on December 23, 2025, less than 24 hours after the filing of the Formal Complaint.

4. **Causation and Aggregate Damages:** The immediate disclosure of cargo information post-filing confirms that FreightLead maintained the capacity to facilitate the delivery at any point since the cargo's arrival. FreightLead's sustained failure to notify and subsequent refusal to cooperate were the proximate causes of Complainant's total economic damages of \$21,419.64. These represent the aggregate costs incurred to mitigate the effects of an unauthorized deprivation of property lasting from August through December 2025.

III. EVIDENCE OF DIRECT PARTICIPATION

Respondent FreightLead's claim that it was not involved in this transaction is contradicted by the physical evidence. Complainant has provided a redacted Bill of Lading (**Exhibit 2**) which prominently features the FreightLead brand and logo. This document was issued to the Complainant by Respondent AMOOV as the official record of the shipment. The existence of FreightLead-branded documentation at the point of origin confirms that FreightLead was a designated participant in the logistics chain from the outset. Furthermore, the fact that FreightLead personnel in New Jersey possessed the internal tracking data and directed the Complainant's representative to "Dispatch" proves that FreightLead was the active operational point of contact for this shipment. Regardless of their

internal business relationships, FreightLead's specific actions in withholding information were the direct cause of the Complainant's damages.

IV. CONCLUSION

FreightLead's conduct was the primary cause of the 40-day delay and the multi-month failure to notify. Complainant has pleaded sufficient factual matter to state a claim for relief that is plausible on its face. To dismiss FreightLead at this stage would allow a regulated OTI to escape liability for participating in the exact hostage-holding conduct the Shipping Act is intended to prevent.

WHEREFORE, Complainant respectfully requests that the Commission **DENY** Respondent FreightLead's Motion to Dismiss.

Respectfully submitted,

/s/ Nancy Prior

Nancy Prior, Complainant Pro Se, Dated: March 5, 2026

510 SE 5th Ave

Fort Lauderdale, Florida 33301

(954) 292-9966

nancyrprior@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that on this March 5, 2026, I served a copy of the foregoing via electronic mail (email) on the following:

Byron Countryman (bcountryman@countrymanlaw.com), Counsel for Respondent AIR 7 SEAS TRANSPORT LOGISTICS, INC.

Henry Gonzalez (hgonzalez@clarkhill.com), Counsel for Respondent FREIGHTLEAD LLC

AMOOV GROUP (alexandre.auzanet@amoovgroup.com; connect@amoovgroup.com)

Respondent

/s/ Nancy Prior

Nancy Prior

EXHIBIT 1

BEFORE THE FEDERAL MARITIME COMMISSION

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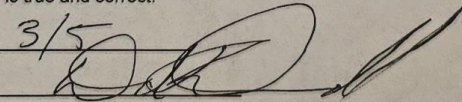
DECLARATION OF DAVID THOMAS DRISCOLL

I, Davis Thomas Driscoll, declare as follows:

1. I make this declaration based on my personal knowledge regarding the shipment of household goods belonging to Complainant Nancy Prior.
2. On November 12th in the evening the Priors reached out to myself advising that they have been waiting on their House Hold Goods for over 3 months.
3. Over the course of 3, plus months they were trying to locate their personal items and to set up a final delivery to their new home in Florida.
4. The Priors sent me the limited information they had and was able to figure out that their container more than likely landed in Miami sometime in August off a Maersk Vessel. Also noted that there were three parties (**AMOOV, FreightLead LLC, and Air 7 Seas**) handling their shipment. **FreightLead LLC** one of the parties had an office down the road from my home.
5. On **November 13, 2025**, I physically visited the business office of **FreightLead LLC**, who were unresponsive to the Prior's attempts to contact them.
6. I ended up sitting with a gentleman at **FreightLead LLC** located in Parsippany, New Jersey. He was helpful enough to a point where I was able to confirm the Container with the HHG landed off of a Maersk Vessel on August 19th in Maimi and it was cleared CBP:
 - a. The HHG were stored in a warehouse outside the Port/Terminal.
 - b. That the HHG were dispatched the to a Nelson who is believed to work for or is contracted by **Air 7 Seas**.
7. It is my understanding just after my visit the Priors were contacted by Nelson, he confirmed they had their personal items via photos, and stopped all communications with them until the FMC complaint was processed.
8. It is my understanding when the FMC complaint went through; the Prior's were contacted by both **FreightLead LLC & Air 7 Seas** (had a conference call).
9. It is my understanding they were both contract by **AMOOV** were not paid (or not paid in full for all of their services) and at this point were holding on to the Prior's HHG.
10. It is my understanding that **FreightLead LLC & Air 7 Seas** requested the total amount agreed with **AMOOV** to release the Prior's HHG. They only released the HHG when the Prior's agreed to pay an exurbanite amount of fees brought on by the mismanagement of the shipment.
11. **FreightLead LLC & Air 7 Seas** essentially maintained this refusal to cooperate for approximately 40 days, until December 23, 2025—one day after the filing of the formal FMC Complaint.

I declare under penalty of perjury under the laws of the United States of America that the foregoing to my knowledge is true and correct.

Executed on: 3/5

Signature: 

Printed Name: David Thomas Driscoll

Please feel free to contact myself at 1-908-340-9911 and/or
davidthomasdriscoll@hotmail.com

EXHIBIT 1

EXHIBIT 1-A

CHARGES	DESCRIPTION
	REGISTRATION TERMINAL HANDLING CHARGES
<u>Nelson</u> Dispatch LTLH @air 7 SEAS, US 408-957-8787 (Ext: 4656) <u>Rita</u> rita.moreau@amobuygroup.com	
Pay to the order of: <u>CHASE BANK</u>	
100 PARSONS RD, PARSONS, NJ 07654	
Pay to the order of: <u>AMOBUYGROUP</u>	
100 PARSONS RD, PARSONS, NJ 07654	
Address: <u>FRECHILEAD LLC</u> 20 E HALSEY RD PARSONS, NJ 07654 UNITED STATES	

EXHIBIT 1-A

EXHIBIT 2



Freightlead LLC
20 E Halsey Road
Parsippany NJ 07054 USA
+1-551-244-6670
arn@freightlead.com

FMC#: 028157NF WCA#: 130039
DOT#: 4006949 MC#: 1507488

INVOICE S250816592SI

Page 1 of 1

AMOOV GROUP LIMITED.
ATTENTION: THE MANAGER ACCOUNTS
BEVERLY COMMERCIAL CENTER 87-105 CHATHAM
ROAD
SOUTH TSIM SHA TSUI
HONG KONG

INVOICE DATE 18-Aug-25
CUSTOMER ID AMOOVHKG
SHIPMENT
DUE DATE 18-Aug-25
TERMS Cash on Delivery

CONSOL NUMBER C250813878SI

SHIPMENT DETAILS				PRINTED BY: Geanne Usi	
SHIPPER		CONSIGNEE			
XXXXXXXXXX		XXXXXXXXXX			
ORDER NUMBERS / OWNER'S REFERENCE					
XXXXXXXXXX					
GOODS DESCRIPTION					
USED HOUSEHOLD AND PERSONAL EFFECTS FREIGHT PREPAID					
IMPORT CUSTOMS BROKER		WEIGHT	VOLUME	CHARGEABLE	PACKAGES
XXXXXXXXXX		XXXXXXXXXX	XXXXXXXXXX	XXXXXXXXXX	XXXXXXXXXX
VESSEL / VOYAGE / IMO(LLOYDS)			OCEAN BILL OF LADING		HOUSE BILL OF LADING
SANTA ROSA / 529W / 9430363			XXXXXXXXXX		XXXXXXXXXX
ORIGIN		ETD	DESTINATION		ETA
BEANR = Antwerpen, Belgium		23-Jul-25	USMIA = Miami, United States		19-Aug-25
CONTAINERS					
XXXXXXXXXX					
CHARGES					
DESCRIPTION			CHARGES IN USD		
Destination Terminal Handling Charges			650.00		

TOTAL CHARGES

Please contact us within 7 days should there be any discrepancies.

SUBTOTAL

TOTAL USD

CUSTOMER ID AMOOVHKG
PAYMENT METHOD

Invoiced

BALANCE DUE
DUE DATE

18-Aug-25

Transfer Funds To:

ABA 021202337
Account 950608858
JPMORGAN CHASE BANK
100 PARSIPPANY RD. PARSIPPANY, NJ 07054

SWIFT CHASUS33

Address:

FREIGHTLEAD LLC
20 E HALSEY RD
PARSIPPANY NJ 07054
UNITED STATES

Pay Ref: AMOOVHKG S250816592SI 00034549

EXHIBIT 2